

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 491

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO IMMUNITY OF PERSONS GIVING EMERGENCY FIRST AID; AMENDING SECTION 5-330, IDAHO CODE, TO REVISE PROVISIONS REGARDING IMMUNITY OF PERSONS GIVING EMERGENCY FIRST AID FROM DAMAGE CLAIMS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 5-330, Idaho Code, be, and the same is hereby amended to read as follows:

5-330. IMMUNITY OF PERSONS GIVING EMERGENCY FIRST AID FROM DAMAGE CLAIM. That no action shall lie or be maintained for civil damages in any court of this state against any person or persons, or group of persons, who in good faith and without compensation, being at, or stopping at the scene of an accident or emergency, including a mental health or suicidal crisis, offers and administers emergency first aid, ~~or~~ emergency medical attention, or emergency psychological attention, including responding to suicidal thoughts, to any person or persons injured in such accident or emergency unless it can be shown that the person or persons offering or administering emergency first aid, ~~or~~ emergency medical attention, or emergency psychological attention is guilty of gross negligence in the care or treatment of said injured person or persons or has treated them in a grossly negligent manner. The immunity described herein shall cease upon delivery of the injured person to either a generally recognized hospital for treatment of ill or injured persons, or upon assumption of treatment in the office or facility of any person undertaking to treat said injured person or persons, or upon delivery of said injured person or persons into custody of an ambulance attendant.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.